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[TENTATIVE] ORDER DENYING CARPET SERVICE BERT THE DUTCHMAN dba FLOOR TECHNOLOGY GROUP'S MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

I. INTRODUCTION

Plaintiff Carpet Service Bert the Dutchman dba Floor Technology Group ("Plaintiff") filed its original complaint on June 8, 2022, against Defendant Jokake Construction Services, Inc., asserting claims arising from unpaid subcontract work performed on the Las Encinas Psychiatric Hospital project. Plaintiff subsequently filed a First Amended Complaint on November 30, 2022, adding a payment bond claim. The case was later consolidated with thirteen related actions arising out of disputes concerning the construction of the Las Encinas Psychiatric Hospital.

On July 6, 2026, Plaintiff filed the instant motion for leave to file a Third Amended Complaint ("TAC"). On July 22, 2026, Defendants Pasadena Oaks Life Properties, LLC and Signature Healthcare Services, LLC ("Owner Defendants") filed an opposition. On July 28, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a) provides: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1); see Code Civ. Proc., § 576.)

Permissible amendments pursuant to Code of Civil Procedure section 473, subdivision (a) include amendments which add causes of action. A plaintiff that fails to plead a cause of action arising out of the transaction or occurrence that gave rise to the complaint may apply to the court for leave to amend the complaint to assert the cause of action, whether that failure was the result of oversight, inadvertence, mistake, neglect, or other cause. (Code Civ. Proc., § 426.50; see Code Civ. Proc., § 426.10, subd. (c).) The motion to amend may be filed at any time during the course of the action, on notice to the adverse party. (Id., § 426.50.)

The court has broad discretion to permit amendments to pleadings, and "the court's discretion will usually be exercised liberally to permit amendment of the pleadings." (Howard v. County of San Diego, (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Ibid.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse

permission to amend . . .” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) A motion to amend a pleading must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

III. ANALYSIS

Plaintiff moves for leave to file a TAC to add causes of action for 1) intentional interference with contractual relations and (2) negligent interference with prospective economic advantage against Defendants Pasadena Oaks Life Properties, LLC and Signature Healthcare Services, LLC. (“Owner Defendants”) Plaintiff contends the proposed amendment is intended to clarify and amplify its existing allegations after further analysis of the facts and circumstances surrounding the Owner Defendants’ conduct. (Motion, pp. 1, 3-4.)

Plaintiff argues that leave to amend should be liberally granted under Code of Civil Procedure sections 473, subdivision (a)(1), and 576 because California law favors resolving all disputes in a single action. Plaintiff maintains the amendment will not prejudice the Owner Defendants because trial is not scheduled until September 14, 2027, no continuance will be required, the proposed claims are based on facts already known to Defendants, and discovery on the operative complaint is not currently underway. (Id. at pp. 4-5.) Plaintiff also contends it has complied with California Rules of Court, rule 3.1324 by submitting both redlined and clean copies of the proposed TAC and identifying the new allegations to be added. (Id. at pp. 5-6.)

Owner Defendants oppose, arguing the motion should be denied on several grounds. First, they argue that Plaintiff failed to satisfy the good cause requirement under the Case Management Order governing amendments filed more than 60 days after entry of the order. (Opposition, pp. 9-10.) Owner Defendants further contend the proposed amendment is futile because the new causes of action are barred by the statute of limitations, do not relate back to the operative complaint, and fail to state viable claims. (Opposition, pp. 11-20.) Finally, Owner Defendants argue they will be prejudiced by the amendment because it would significantly expand the scope of the litigation and require additional discovery and motion practice. (Opposition, pp. 20-21.)

The Court agrees that the motion is procedurally deficient. California Rules of Court, rule 3.1324(b) requires the supporting declaration to specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request for amendment was not made earlier.

Here, Plaintiff satisfies only the first requirement by identifying that the proposed Third Amended Complaint adds causes of action for intentional interference with contractual relations and negligent interference with prospective economic advantage. (Salek Decl., ¶ 2.)

However, the declaration does not adequately explain why the amendment is necessary and proper. Instead, counsel merely states that it was determined the alleged conduct gave rise to additional claims, without providing any factual or legal explanation supporting that conclusion. (Salek Decl., ¶ 3.) The declaration likewise fails to state when the facts underlying when the proposed claims were discovered or identify what prompted their discovery. Finally, although counsel asserts any delay was not in bad faith, the declaration does not explain why Plaintiff did not seek amendment earlier, particularly where the alleged conduct giving rise to the new claims occurred in 2021, but the operative complaint was filed in August 2024. (Salek Decl., ¶¶ 3-5.) Therefore, Plaintiff has not demonstrated compliance with Rule 3.1324(b).

Because the Court concludes the motion is procedurally deficient, it need not reach the parties' arguments regarding whether the proposed claims are time-barred, relate back to the operative complaint, or are otherwise legally sufficient.

Based on the foregoing, the Court DENIES Plaintiff's motion for leave to file a third amended complaint.

IV. CONCLUSION AND ORDER

The Court DENIES Plaintiff Carpet Service Bert the Dutchman dba Floor Technology Group's motion for leave to file a third amended complaint.

Plaintiff is ordered to provide notice of this order.

Dated: August 4, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT